

RELEASE OF LIABILITY, WAIVER OF CLAIMS, INDEMNIFICATION AND ASSUMPTION OF RISKS

BY SIGNING THIS DOCUMENT, YOU WILL WAIVE CERTAIN LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE OR CLAIM COMPENSATION

PLEASE READ CAREFULLY!

In consideration of The Students' Union, The University of Calgary and The Governors of The University of Calgary, both corporations continued pursuant to the *Post-Secondary Learning Act* (Alberta), (collectively, the “**Organizers**”) permitting the individual participant named below (“**I**” or “**me**”) to participate in hiking, scrambling, climbing, biking, caving, paddling, fishing, snowshoeing, back-country and cross-country skiing, ice/mixed climbing, mountaineering, backpacking, and front country camping at Banff, Jasper, Yoho, Waterton, Kootenay, Mt Revelstoke, and Glacier National Parks from September 1st, 2025 to August 31st, 2026 (the “**Activities**”), and for other good and valuable consideration, I agree to all the terms and conditions set forth in this agreement (this “**Agreement**”).

ASSUMPTION OF RISKS

I AM AWARE AND UNDERSTAND THAT THE ACTIVITIES INVOLVE MANY RISKS, DANGERS, AND HAZARDS, INCLUDING BUT NOT LIMITED TO THE RISK OF SERIOUS INJURY, DEATH, OR PROPERTY DAMAGE. I ACKNOWLEDGE THAT I AM VOLUNTARILY PARTICIPATING IN THE ACTIVITIES. I FREELY ACCEPT AND ASSUME ANY AND ALL OF THE RISKS, DANGERS, AND HAZARDS INVOLVED AND THE POSSIBILITY OF INJURY, DEATH, OR PROPERTY DAMAGE, WHETHER CAUSED BY THE NEGLIGENCE OF THE ORGANIZERS OR OTHERWISE.

WAIVER OF CLAIMS AND RELEASE OF LIABILITY

I hereby expressly waive and release any and all claims which I have or may in the future have against the Organizers, their affiliates, and their respective directors, governors, councilors, executives, officers, employees, agents, representatives, successors, and assigns (collectively, “**Releasees**”), on account of injury, death, or property damage arising out of or attributable to my participation in the Activities, due to any cause whatsoever, including without limitation the negligence of the Organizers or any other Releasee, breach of contract, or breach of any statutory or other duty of care owing under occupiers liability legislation or otherwise. I covenant not to make or bring any such claim against the Organizers or any other Releasee, and forever release and discharge the Organizers and all other Releasees from liability under such claims.

INDEMNIFICATION

I SHALL DEFEND, INDEMNIFY, AND HOLD HARMLESS THE ORGANIZERS AND ALL OTHER RELEASEES AGAINST ANY AND ALL LOSSES, DAMAGES, LIABILITIES, DEFICIENCIES, CLAIMS, ACTIONS, JUDGEMENTS, SETTLEMENTS, INTEREST, AWARDS, PENALTIES, FINES, COSTS, OR EXPENSES OF WHATEVER KIND, INCLUDING REASONABLE LEGAL FEES, SUIT, ACTION, OR PROCEEDINGS ARISING OUT OF OR RESULTING FROM THE ACTIVITIES.

This Agreement constitutes the entire agreement of the Organizers and me with respect to the subject matter contained herein and supersedes all prior and contemporaneous understandings,

agreements, representations, and warranties, both written and oral, with respect to such subject matter. If any term or provision of this Agreement is held to be invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. This Agreement is binding on and shall enure to the benefit of me and my heirs and next-of-kin, and the Organizers and their successors and assigns. This Agreement shall be governed by and construed in accordance with the laws of the Province of Alberta and the federal laws of Canada applicable therein. Any claim or cause of action arising under this Agreement may be brought only in the courts of the Province of Alberta, and I hereby consent to the exclusive jurisdiction of such courts.

I ACKNOWLEDGE THAT I HAVE READ AND UNDERSTOOD ALL OF THE TERMS OF THIS AGREEMENT AND THAT I AM VOLUNTARILY WAIVING SUBSTANTIAL LEGAL RIGHTS (ON MY BEHALF AND ON BEHALF OF MY HEIRS, EXECUTORS, ADMINISTRATORS, AND NEXT-OF-KIN), INCLUDING THE RIGHT TO SUE THE ORGANIZERS AND THE RELEASEES.

Participant:

Name

Signature

Email Address

Date

If the participant is under the age of 18, please provide the name and email address of the participant above and provide your information below.

I am the parent or legal guardian of the minor named above. I have the legal right to consent to and, by signing below, I hereby do consent to the terms and conditions of this Agreement.

Name

Signature

Email Address

Date